CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
September 8, 2010
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:05 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Commissioner Rose Tydus, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Assistant City Attorney Michael Rodriquez and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

Lt. Alberto Perez of the Miami-Dade County School Police Department came forward with a presentation relating to the Gang Abatement grant which is a part of the BYRNE grant to assist in combating gang violence in schools and surrounding communities which include Opa-locka.

5. APPROVAL OF AGENDA:

Request to amend the agenda to include the following resolution as item 13-1:

13-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE CITY MANAGER TO FOLLOW AND IMPLEMENT ANY AND ALL FINAL ORDERS OF THE PERSONNEL BOARD;

PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

It was moved by Commissioner Holmes; motion to amend the agenda to include the above resolution died for lack of a second.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda items 16-3, 16-8, 16-14, 16-16, 16-17, and 16-18 from the consent agenda to be discussed separately.

Vice Mayor Taylor suggested that the City Manager revisit and defer agenda item 16-16 because it may have not been advertised properly.

Commissioner Holmes pulled agenda items 16-9, 16-12, 16-18 from the consent agenda to be discussed separately.

Manager Patterson deferred agenda item 16-16 from the consent agenda.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:
There were none.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 07/28/2010
Special Commission Meeting – 08/11/2010

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of July 28, 2010 and the Special Commission Meeting of August 11, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

Although the resolution to be amended didn't make it on the agenda, Commissioner Holmes stated that it would be brought back at the next commission meeting as a part of the agenda. This issue dealing with the employees has been lingering on for too long and it needs to be discussed.

Commissioner Johnson asked, is this resolution dealing with the Personnel Board and those issues presented to the Commission in the past?

Commissioner Holmes stated that it would have been good to add this resolution to the agenda for discussion to allow the City Manager to handle this issue. He expressed his concerns with the Commission having various boards report to them when they are totally disregarding the findings brought before them. The City Commission cannot get involved in the day to day operations of the city but when the Personnel Board renders their findings and it is conclusive, the City Manager has to deal with the issue. However, when that doesn't happen and it is brought to the Commission's attention then they have to direct the City Manager to follow the Personnel Board ruling. This resolution is directing the City Manager to follow the Personnel Board's ruling and make a decision.

9. DISTRICT ONE – COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison of District 1 County Commissioner Barbara Jordan's Office came forward and advised the Commission that he'd forwarded the list of vacant county owned land to Commissioner Johnson as requested.

Mayor Kelley requested that Mr. Gardner forward the list to the entire Commission.

Commissioner Johnson advised that her intent for requesting the list was not via the City of Opa-locka.

With regards to the upcoming meetings relating to CAA and funding, Mayor Kelley stated that the Commission is very concerned and would like to be kept abreast of what is happening with that.

In moving forward with CAA and Headstart, Commissioner Johnson said the community must get engaged because some of those slots are being recommended to be outsourced. The concern is that many individuals who have been working for CAA for many years may not be hired by the delegation.

Vice Mayor Taylor asked for a list of resources available to District 1 residents.

Mr. Gardner advised that he would provide the list to the Commission the following day.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

11. PUBLIC PRESENTATION:

1. April Ponder
   re: Introduction of Business

April Ponder of 16245 NW 22nd Court, Miami Gardens, Florida came forward and briefly discussed her plans to employ hard to place applicants more specifically ex-offenders within her business Ponders Commercial Enterprise, Inc. She further asked for assistance in reaching her goal by assisting ex-offenders in transitioning back into society.

Mayor Kelley stated that he had the opportunity to meet with Ms. Ponder regarding her program through her efforts to hire ex-offenders. He applauded Ms. Ponder for her efforts and working towards getting the licensing addressed.

Commissioner Johnson suggested that Ms. Ponder contact George Yap of LEASA, Inc. who hires 99.9% ex-offenders of which she would provide the contact information.

2. Alvin Burke
   re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and expressed his frustration with regards to the lack of a second to amend the agenda to include the resolution directing the City Manager to follow the findings of the Personnel Board for those employees wrongfully terminated.

Commissioner Johnson asked the City Manager for a status with regards to the Personnel Board findings? She further asked the City Attorney what does the recommendation from the Personnel Board provides for the City Manager to follow.

Manager Patterson stated to the Commission that he would like for the City Attorney to be present and respond to those concerns.

Commissioner Johnson directed the City Manager to meet with the Commission individually before the next regular meeting to discuss this matter. However, due diligence must be done because in the past she had directed the City Manager to get with the City Clerk for findings but this issue never came back. This matter should be a priority to the City Manager because he shouldn't need legislation to direct him to do due diligence. She directed the City Attorney to get with the City Manager on this matter.

Commissioner Holmes stated that the Commission had the opportunity to place the item on the agenda and it is not too late to do so.

3. Terence Pinder

re: welfare of the city

Terence Pinder of 250 Sabur Lane, Apt. 130, Opa-locka, Florida appeared before the City Commission and applauded the Parks & Recreation staff for an excellent football program. He recommended that the city find monies to possibly provide food and drinks after every home game for the participating children.

He commended Commissioner Tydus on the beautiful garden and encouraged the Commission to adopt legislation making it a butterfly sanctuary.

He further voiced his concerns relating to the upkeep of the city's corridors, more specifically NW 22nd Avenue, including the sidewalks, drains, and gutters. The lack of maintenance of the drains and gutters is causing flooding in the area after rainy weather. He spoke about the abandoned homes throughout the city which must be addressed due to the increase in crime and burglaries.

With regards to the food for the youth in the football program, Mayor Kelley said that perhaps that could be coordinated with the Team Moms. In terms of the gutters, there is supposed to be a schedule in place. He directed the City Manager to provide the Commission with a copy of the schedule for the gutters.

He continued by saying that he'd seen the Urban Rangers clean the paper on NW 22nd Avenue and as soon as it's done, there's paper all over the place again; therefore, the city may have to do this on a more frequent basis even with the gutters especially during rainy season.

Mr. Pinder suggested that the city interact the Urban Rangers and Code Enforcement about the homeless situation as they board up the homes.

Mayor Kelley informed Mr. Pinder that the city is working with the Homeless Trust because there is funding available.

4. John Riley
re: welfare of the city

John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and stated that the Opa-locka Charter is the city's constitution and it fits the people of Opa-locka; it is the people of Opa-locka who voted for that charter which does not give the City Manager any discretion over the Personnel Board. The Opa-locka charter states that the findings of the board are conclusive meaning it is not a recommendation but a finding of fact. Although he didn't want to sue the City of Opa-locka, the Commission has encouraged him to sue but only this time he will amend the suit and name those who don't want to uphold the charter personally.

He made reference to Ordinance No. 07-03, Rule 11 (8): "wherever the board has reason to believe that these rules have been violated by the abusive power in recommending or

making an appointment to any position or in a layoff, demotions, suspensions, or removal without justification, it shall be the duty of the board to investigate. If in making this investigation the board shall find that said violations were contrary to the intent and spirit of these rules and regulations, it shall make a report of its findings to the City Manager and when necessary to the City Commission". He said this was the fourth time he had submitted the findings and came for determination of an issue which was mandated by Miami-Dade County Charter upon municipalities and the Commission and the City Manager chose to do nothing and that is wrong.

11a. CITIZENS' FORUM:

1. Johnnie Mae Green of 2091 Wilmington Street, Opa-locka, Florida, came before the City Commission to express her concerns regarding the ongoing violence, drug activity and loitering in the area of NW 22nd Avenue; the deplorable condition of the apartments on NW 22nd Avenue; and the lack of Code Enforcement in that area.

Mayor Kelley stated that he also had those same concerns and had been meeting with the City Manager. He directed the City Manager to have the police department address the concerns at the conclusion of Citizens' Forum.

Of concern to Vice Mayor Taylor was the lack of police presence and community policing in area of NW 22nd Avenue. She conducted a walk through of that area and noticed that the residents seemed scared to speak to her. Some of the residents indicated that the individuals who conduct business in that area don't live there. The police department needs to address this area and conduct community policing as a part of the COPS grant awarded to the city. Additionally, there are existing safety hazards in those apartments which should have been addressed through Code Enforcement (i.e. the one way in and one way out of the apartments).

She continued by saying the East side of Opa-locka is not receiving the services it should.

Not being aware of the schedule for cleaning of the gutters/drains, she suggested that the city start pumping the water in that area so alleviate the flooding.

Commissioner Holmes advised that the Opa-locka Police Department is working diligently to clean up that area and although it will not happen overnight there is a plan in place to address those concerns.

Commissioner Johnson's main concern is public safety and the quality of life in that area. She said it is imperative that those apartments are addressed because of the existing hazards and Code Enforcement should already be addressing the issues.

She directed the City Manager to get with the Code Enforcement Director and come up with a plan of corrective action to address the concerns relating to the quality of life for those residents living in the apartment complex. This plan should be provided to the Commission prior to the next commission meeting on September 22, 2010.

She further directed the City Attorney to be on stand by to prepare legislation for replacement should she not receive a plan of action by September 22, 2010.

Vice Mayor Taylor disagreed that a plan of action was needed because the city already knew what needs to be done to address public safety in that area.

Commissioner Johnson concurred with Vice Mayor Taylor that public safety needed to be addressed immediately through the Opa-locka Police Department but her request for a plan of action was in terms of the quality of life for the people living in that facility.

Mayor Kelley said he had mentioned all of these same concerns in the past for implementation of a plan and one of the things that has to occur is that the city must get the property owners engaged. The problem is that the city has been dealing with property managers and not owners. Because this is such a pressing issue, the Commission doesn't want to wait to hear where the city is with addressing the concerns.

Cheryl Cason, Chief of Police, City of Opa-locka Police Department came forward along with Deputy Chief Adam Burton. Chief Cason informed the Commission that the Opa-locka Police Department is doing its best to ensure public safety and enhance the quality of living in Opa-locka. One of the main highlights is to address 22nd Avenue which Deputy Chief Burton has been working diligently along with the COPS grant and the suppression team to strategically attack these problems.

Deputy Chief Burton stated that the Opa-locka Police Department started to notice a spike up in criminal activity along the 22nd Avenue corridor as far as the violent crime is concerned. They have decided to devise a plan that would incorporate meeting with the property owners, management, community and street level enforcement and that plan started approximately two months ago where they initiated enforcement activity as far as police officers going in, making arrests and trying to identify some of the criminal element. A meeting was held in which the property owners along that corridor and management were invited and there was a 60% turnout. Some of the most important properties that they wanted management to attend didn't show up at that particular time. Also, there was an incident where he, the Chief, a group of police officers and Code Enforcement walked along NW 22nd Avenue where they visited the apartments and passed out curfew flyers and business cards. With the resources available, the Opa-locka Police Department has come up with a suppression unit of officers and supervisors to have the ability to go undercover to identify the criminal element. This program started a couple of weeks ago resulting in several arrests.

He continued by saying that Code Enforcement had addressed several issues and citations were issued that particular day. He felt the Opa-locka Police Department was headed in the right direction in trying to get that corridor under control. He addressed Vice Mayor's concern relating to the community policing by saying there are a multitude of activities with Major Barrett through the CET program which includes community meetings, crime watch meetings, various activities on a monthly basis throughout the community which

improves relationships with the officers and community. Also, in the planning stages is a bike detail consisting of training existing officers to patrol the streets to decrease crime.

After listening to the presentation by the Opa-locka Police Department, Vice Mayor Taylor said she was not impressed because her concern was not as much as the property owners from the police department's aspect. She said she wanted those criminals gone and she knows a plan is not needed for that because the police department should know how to address the crime in that area.

She continued by saying that she is not a police officer but if police presence is there on a continuous basis then the criminals will relocate somewhere else. As far as the property owners are concerned, that's something for the City Manager to address along with his staff.

She further stated that she is looking for the Opa-locka Police Department to get in there and clean that area up.

Chief Cason added that the Opa-locka Police Department is doing just as Vice Mayor Taylor has stated and working on addressing the criminal activity.

Commissioner Holmes asked, what is the time for the Miami-Dade County curfew?

Deputy Chief Burton replied that the curfew is 11:00 p.m. on weekdays and 12:00 a.m. on weekends.

Commissioner Holmes suggested that Opa-locka come up with its own curfew. He directed the City Attorney to bring back a curfew for Opa-locka at the next commission meeting.

He continued by saying that the city must give the police department the resources needed to get the job done (i.e. additional vehicles). He felt confident that the police department is doing what they can to address the concerns in that area

After hearing all of the concerns, Mayor Kelley instructed the Chief of Police to correctly address the concerns faster. Obviously, there are different phases to the problem and the Opa-locka Police Department's is the policing and security; but the city cannot become folks private security guards and that is why they got to get on the owners to improve the apartment buildings, if not, then the city would take the necessary steps through Code Enforcement. From a historical standpoint, the city has had these challenges with apartment buildings and ultimately it's the citizens who live there that end up in the most difficult position. If the city is going to shut the apartment down, then they must have a place to relocate the citizens. The citizens must feel safe coming out of NW 22nd Avenue and right now there is not a safety factor and something must be put in place on a continuous basis to address the other components.

He continued by saying that the City Manager was given a directive for a plan which should be inclusive of all these other factors in addition to dealing with the immediate concern of safety, the Code Enforcement component and contacting of the owners letting them know that the city will not allow them to be absent owners. Although this is not the first time the city has the issue with apartments that are crime challenged and the owners are absent where the city must go in and do everything necessary.

While the City Manager is working on implementing a plan, he said that the citizens need to feel safe. The Commission is concerned about making sure all citizens feel safe in the city. He directed the City Manager to notate the cost, manpower hours because to do all of this does cost.

Commissioner Holmes suggested that the Chief of Police come up with a good time for the curfew in Opa-locka and follow up with him the following day.

Commissioner Johnson reminded the City Manager that the city has one of the strongest legislation dealing with landlords. The city has many laws on the books which must be implemented.

2. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that the city could sit there and micromanage the police department; however, the police department is doing a great job with the resources available. The city is in need of additional police officers and vehicles.

He expressed his concerns with the city spending taxpayer's money on renting office spaces at Town Center One.

3. Terence Pinder of 250 Sabur Lane, Apt. 130, Opa-locka, Florida, came forward and spoke about the concerns relating to NW 22nd Avenue. This matter is suppose to be addressed in ten days but nothing is going to happen and the reason its going to happen now is because one commissioner give the City Manager some direction. He suggested that the Commission adopt legislation to give the City Manager clear direction on what needs to be done.

He continued by asking, where are the five police officers that were suppose to be hired with the money from the COPS grant?

Of concern to Commissioner Johnson was whether the city hired police officers upon receiving the COPS grant. With this grant the city was suppose to hire five police officers.

Deputy Chief Burton explained that there were two grants: one grant was a recovery grant for two officers and the stipulations were to keep if the city was going to lay off somebody or to rehire somebody. He believed those two positions were filled with people for anticipated lay offs.

Commissioner Johnson stated that there could not have ever been any thought of laying off any public safety because the Commission adopted legislation for a freeze on hiring with the exception of public safety; therefore, if there were any talk about lay off then that could have not been.

She continued by asking the Finance Director for clarification on the COPS grant.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and advised that as the Finance Director for the city he is not the Human Resources Director or the Budget Administrator.

Commissioner Johnson stated that her question is to the Director of Finance who is accountable for the monies in this city. She continued by asking, what happened to the COPS grant for five police officers?

Dr. Orji said he didn't know the details of the COPS grant.

Commissioner Johnson said that the report from the City Manager to the Commission did not address any lay offs. She continued by asking the Human Resources Director how many police officers has the city hired with the COPS grant?

Guithele Ruiz-Nicholas, Human Resources Director for the City of Opa-locka came forward and stated that she had not seen a requisition for cops from the time she has started with the city in February.

Faye Douglas, Budget Administrator came forward and after hearing discussion relating to lay offs she said there are no lay offs. At one point there was discussion about lay offs but it was not police officers; therefore, she's not sure where that is coming from. For reimbursement purposes the city has identified five officers for the COPS grant.

Based on body language, Commissioner Johnson said she could tell the Chief of Police didn't know what staff was talking about. She continued by asking Chief Cason if she was included in those discussions.

Chief Cason replied, no.

Commissioner Johnson requested to meet with the City Manager the following day on this matter because this is not going in the right direction. She said she'd been telling the city for years that there is something wrong with the money and the paper trail.

With regards to the COPS grant, Mayor Kelley said it is clear that there's concern as to the structure and how it is being reported. He directed the City Manager to get the reporting addressed as well as where those officers are fitting into the scheme.

He continued to say that he didn't want to leave the meeting as though the police department doesn't have staff and the Chief is totally in the dark on her personnel staffing.

He suggested the City Manager provide the Commission all the details relating to the COPS grant and come back in that same forum and publicly make his report on this matter at the next regular meeting.

4. John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and suggested that Article II of Section 13 be amended. The City Manager has the authority to hold a hearing to deny or revoke business licenses and one of the things to be included as the grounds is to address negligent apartment owners who are knowingly allowing criminal activity to occur on those properties. This should be a reason for their license to be denied or revoked. Because their license is being revoked it doesn't mean the apartment has to be closed down because the city could have a receiver who would collect the rent, pay the bills, etc. until the property owners come into compliance.

He continued by saying that he asked the City Clerk's Office to make an announcement to get the Housing Authority together to do what needs to be done.

As a part of the receivership, Mayor Kelley said that the problem becomes as a city entity their ability to be involved in that point. Although he'd seen it done in some cities, they would have to actually engage a third party non profit to be the receivership. He thought that perhaps the city could use the Housing Authority but case law has been challenged.

Mr. Riley stated that the city could ask for the courts to appoint a receiver or the Housing Authority could have a management company act as a receiver but the Housing Authority would not do it itself.

Commissioner Holmes recalled the city taking over an apartment complex in the past where a company was put in place to manage those apartments.

Commissioner Johnson suggested that staff review the legislation in place relating to property owners.

5. Anjirlic Aminu of A Wellness Association came forward and presented her proposal to implement a wellness program in the City of Opa-locka. This program will enable participants to alleviate the harmful effects stress is having by prescribing them a new way of life.

6. Gary Johnson of 13118 Alexandria Drive, Apt. 142, Opa-locka, Florida, appeared before the City Commission and voiced his concerns regarding the lack of crossing guards on Alexandria Drive where there are four schools. Secondly, he informed them of an incident that occurred relating to him transporting children from the Garden Apartments to Robert B. Ingram Elementary School. He said an individual issued a

compliant to Miami-Dade County that he was running school bus transportation without a chauffeur license at which time Miami-Dade County approached him and issued him several citations.

Mayor Kelley stated that when this issue was brought to his attention he contacted the county because to his knowledge the city doesn't have anyone that comes in writing tickets as such on a particular case like this. Therefore, he expects this issue to be resolved immediately. He said he was working on this matter and he would keep the Commission informed.

He suggested that the City Manager look at finding a way to address the safety of the children attending those schools on Alexandria Drive. He further directed that the City Manager inform the Commission as to how this concern was addressed.

Vice Mayor Taylor suggested that while Mayor Kelley is contacting the county that he request for a line on the street for the children to cross.

In addition to that, Mr. Johnson said that the vehicles are blocking the intersection.

Mayor Kelley directed the City Manager in conjunction with the Opa-locka Police Department look at the logistics of both areas and let the Commission know what needs to occur to address the concerns.

12. ACTION ITEMS (items from consent agenda pull list):

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SELECT COVENTRY HEALTH CARE OF FLORIDA AS THE CITY'S HEALTH, DENTAL & VISION INSURANCE CARRIER FOR THE PLAN YEAR BEGINNING OCTOBER 1, 2010 THROUGH SEPTEMBER 30, 2011. *Sponsored by C.M.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

During the budget process, Commissioner Johnson said there was mention of 50% cost for health care.

Guithele Ruiz-Nicholas, Human Resources Director came forward and explained that there are no changes; the city is paying 100% for the HMO and DHMO coverage of all employees. However, 50% is paying paid by the employee for dependent coverage.

Commissioner Johnson expressed her concern relating to having the dialogue with the employees prior to this coming before the Commission for approval.

Mrs. Ruiz-Nicholas stated that this item must go before the Commission prior to being presented to the employees. Once this resolution is adopted, the Human Resources Department will conduct educational sessions with every employee prior to open enrollment.

Commissioner Johnson suggested that the dialogue with the impacted personnel take place first; otherwise, the city would be forcing this process on employees.

She highly encouraged the City Manager to defer this resolution until due diligence has taken place with those employees who are impacted.

Although he is concerned with the impact of employees, Mayor Kelley stated that based on Mr. Citrin's recommendation, reasoning, breakdown provided and cost he would support the recommendation.

He continued by asking about supplemental insurance available to employees.

Mrs. Ruiz-Nicholas stated that the employees would have the option to supplemental insurances which is part of the upcoming process. She said she had been in meetings with Mr. Citrin trying to select the best alternatives for city employees.

Commissioner Johnson said she had reviewed the recommendation from Mr. Citrin; however, she still wants to make sure the dialogue takes place with the employees prior to.

Because AvMed insurance expires on October 31, 2010, she said this should have been presented to the employees since July.

Mrs. Ruiz-Nicholas pointed out to the Commission that the letter presented to the city by the agent of record is dated August 17, 2010. What the city has done differently this year is that as oppose to having the benefits plan overlapping the fiscal year they have fixed it so that the benefit plan would parallel the fiscal year. As time is sensitive from August 17, 2010, this is being presented to the Commission prior to bringing it to the employees to ultimately get them enrolled so that they could have their ID membership by the first week of October.

Commissioner Johnson stated that this information as just stated by Mrs. Ruiz-Nicholas should have been provided to the Commission beforehand.

Commissioner Tydus asked, is there a PPO plan with Coventry Health?

Mrs. Ruiz-Nicholas stated that a PPO is offered to the employees and the quote is included in the package.

Commissioner Holmes stated that there is a decrease in premiums to the city and employees by switching to Coventry Health Care and the overall plan is cheaper than

AvMed. However, he concurred with Commissioner Johnson that the employees should have received this information prior to it being presented to the Commission. Should this resolution pass, he suggested that the information is presented to the employees immediately and if the majority of the employees don't want Coventry then the Commission should be notified as soon as possible.

Mayor Kelley asked, what would be the impact if the employees don't like Coventry Health Care but would rather go with another company and are willing to pay the difference?

Mrs. Ruiz-Nicholas stated that she believed the employees won't like Coventry until they tried the services provided by Coventry. As with any contract, there is a way out where the city can inform Coventry that the employees are not satisfied.

Mayor Kelley stated that he likes the fact that the health insurance contract would run in conjunction with the city budget.

Commissioner Johnson expressed her concerns relating to AvMed's contract ending on October 31, 2010 and the new contract with Coventry commencing on October 1, 2010.

Mrs. Ruiz-Nicholas stated that AvMed has been notified of the city's intent to end the contract on September 30, 2010 by the agent of record.

Commissioner Johnson recalled the city switching insurance several years back and the city ended up having to pay monies for the gap. She suggested that the City Manager and City Attorney have the information in writing so that the city is not paying AvMed until October 31, 2010.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO IMPLEMENT AN AMNESTY PROGRAM THAT ALLOWS PROPERTY OWNERS WITH OUTSTANDING CODE ENFORCEMENT VIOLATIONS TO PAY A REDUCED AMOUNT AFTER MEETING CERTAIN ELIGIBILITY REQUIREMENTS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Vice Mayor Taylor stated that she was in agreement with the resolution; however, she was unsure of what the eligibility requirements are?

Attorney Rodriguez informed the Commission that the eligibility requirements are provided for in Section 2 of the resolution as well as the terms of the amnesty program. He proceeded to read the eligibility requirements of the amnesty program into the record.

He continued by saying that the amnesty program is an opportunity for properties to come into compliance with the incentive being the city giving the owner a break on the fines.

Commissioner Johnson stated that she received many telephone calls from citizens who are not in favor of reducing liens and/or fines for repeat code violators.

Pursuant to the Code Enforcement statute which governs any local governments Code Enforcement requirements, Attorney Rodriguez stated that a repeat violation should be distinguished from an ongoing violation. The eligibility requirements don't distinguish between repeat violations and ongoing violations.

Commissioner Johnson suggested that the resolution be amended because there have been incidents in the past where the same individuals had the same violations over and over even after going before the Special Master.

Attorney Rodriguez stated that the bottom line is if this provides an incentive for properties to come into compliance then it comes down to what's the overriding bottom line for the city; bringing properties into compliance or trying to discourage a person from bringing a property into compliance due to the amount of fines to be paid to remove what would in essence be a lien. The city is offering an opportunity for property owners if they get it taken care of they will provide a break in the fines because the bottom line of Code Enforcement is compliance.

Commissioner Johnson stated that this resolution is authorizing the City Manager and she doesn't want the City Manager to be making the decision in terms how much the fines are reduced.

Attorney Rodriguez explained that the way the statutes are actually provided is that the final authority when it comes to the settlement agreements on a Code Enforcement lien is the City Commission. The City Manager does not have the authority under state statute to approve such violation. The resolution provides for the City Manager to implement a program to bring forth this amnesty. The bottom line is if the property is brought into compliance and the way the terms are stated here this Commission can either adopt a resolution or place in part of the Code Enforcement ordinance that they would authorize or delegate to the Special Master the authority to listen to cases for reduction either under

this amnesty program or a general reduction program and that the magistrate findings serve as a recommendation to the Commission for final approval. Only the City Commission has the authority to release or reduce a Code Enforcement lien.

Commissioner Johnson recommended that the language as stated by Attorney Rodriguez be incorporated into the implementation plan. She said she would support the resolution with the understanding that it would come back to the Commission for final approval. It was her understanding that this resolution was for the City Manager to implement a plan for the Commission to approve.

Manager Patterson stated that Commissioner Johnson was correct based on what the City Attorney has stated.

Attorney Rodriguez stated that the resolution is directing the City Manager to implement this amnesty program which has to work in conjunction with the city's existing Code Enforcement ordinance. There is no need to reinvent the wheel or write new legislation because the ordinance is already in place in regards to Code Enforcement. This is just an added program and the way that the ordinance is written it is temporary; the amnesty program is basically a special deal to get between October 1, 2010 through January 31, 2011 for a reduction in liens once the criteria is met.

Commissioner Johnson thanked the sponsor for bringing forth such legislation.

Commissioner Tydus said initially she had concerns about the actual rate of reduction; however after reviewing the report provided to the Commission by the administration, comparatively speaking they are in line with other municipalities as far as the rate of reduction is concerned. Having reviewed that and wanting to be as fair possible, she said she was in favor of this legislation.

Commissioner Holmes asked for clarification on the state statues in dealing with municipalities having residents come into compliance versus it being a money making plan for the city.

Attorney Rodriguez explained that his understanding in working in other jurisdictions in Code Enforcement that the bottom line of Code Enforcement is compliance and it is not a revenue making machine for the local government. The statute provides a mechanism for compliance and the statute as well provides and gives discretion to the local government to hear cases where a property owner may come to the board asking for a reduction.

He continued by saying that the way the Statute is to be implemented under chapter 162 of Florida Statutes is that there's a notice of violation issued which gives the offender a certain amount of days to bring the property into compliance; if the property is not brought into compliance on the date the violation states then the matter is brought before the Code Enforcement Board or Code Enforcement Special Master. At that point it is heard, the Special Master or Code Enforcement Board issues his order which provides a date upon which compliance has to be met. At the expiration of the date on the order that

the property is not brought into compliance, that is when the fines can be implemented. However, the statutes require that there be a second hearing to implement the fines.

Commissioner Holmes asked, does a Code Enforcement officer have the right to go to a property with overgrown weeds and issue a citation to the property owner?

Attorney Rodriguez stated that he believed the city has adopted the Code Enforcement by Special Magistrate so an officer does not have the authority to step onto a property for overgrown weeds and issue a fine.

Commissioner Holmes stated that those types of incidents have occurred in this city. If a person was issued a Code Enforcement citation for violation, the City Commission has the authority to remove those liens or reduce the liens as long as it is presented to the board at the proper meeting.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO APPROVE AND RATIFY THE CITY MANAGER'S DECISION IN EXPENDING FUNDS TO ENTERPRISE ELECTRICAL CONTRACTING, INC. IN THE AMOUNT OF TWELVE THOUSAND SIX HUNDRED SEVENTY TWO DOLLARS AND ONE CENTS ($12,672.01) FOR EMERGENCY LIGHTING REPAIRS AT INGRAM PARK, PAYABLE FROM ACCOUNT NUMBER 74-572630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes said he was under the impression that the lighting at Ingram Park was recently repaired.

Manager Patterson explained that the resolution is for payment of emergency repairs at Ingram Park. The city tried to get three quotes but only one company was able to do the repairs under the time constraints.

Commissioner Johnson asked for clarification in terms of the emergency lighting.

Starex Smith of the City of Opa-locka Parks & Recreation Department came forward and explained that this resolution is for payment of an invoice for emergency repairs at Ingram Park which were done in the past. The company recently sent the invoice based on a Purchase Order issued to them when the emergency originally occurred. This resolution is for the repairs completed in April.

Of concern to Commissioner Johnson and Vice Mayor Taylor was that the resolution was not written correctly.

Mayor Kelley asked, why wasn't the resolution presented to the Commission during that time if there was a P.O. issued?

Mr. Smith said that when the work was complete the company at the time didn't send the invoice based on the GSA contractual requirements because they were attempting to provide the city with further discounts. The company recently sent the invoice by which staff prepared the item to submit to the City Manager's Office.

Because the resolution is for payment of an invoice but the resolution was written as if the work was just completed, Vice Mayor Taylor suggested that the wording of the resolution be changed to instruct the City Manager to pay the invoice for the amount specified.

Mayor Kelley stated that the concern with the resolution is that it provides for ratification which implies that the invoice has already been paid; however, the invoice has not been paid.

Attorney Rodriguez proposed an amendment to the resolution as follows:

Resolution Title: A RESOLUTION OF THE CITY COMMISISON OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE EXPENDITURE OF FUNDS BY THE CITY MANAGER TO ENTERPRISE ELECTRICAL CONTRACTING, INC. IN THE AMOUNT OF TWELVE THOUSAND SIX HUNDRED AND SEVENTY-TWO DOLLARS AND ONE CENT ($12,672.01) FOR EMERGENCY LIGHTING REPAIRS AT INGRAM PARK, PAYABLE FROM ACCOUNT NO. 74-572630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.

Section 2: The City Commission of the City of Opa-locka, Florida, hereby approves the expenditure of funds by the City Manager to Enterprise Electrical Contracting, Inc. in the amount of Twelve Thousand Six Hundred and Seventy-Two Dollars and One Cent ($12,672.01) for the repairs of Ingram Park lighting system payable from account no. 74-572630.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the original resolution incorporating the language provided by the City Attorney.

In reviewing the correspondence dating back to April, of concern to Mayor Kelley was the reason why this item is just now coming before the City Commission in this form. He is aware of the discussions with the county assisting the city with its procurement and structure which is the problem. However, his concern is the city having email correspondence dating back to April with various staff members in procurement and here the Commission is in September and this is just now reaching the Commission. This item should have come before the City Commission way before now which is a part of the structure of things going through departments and being addressed in a timely manner.

He directed the City Manager to deal with the process and structure internally and let the Commission know how he will fix it.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO NEGOTIATE THE PURCHASE OF VACANT LOT FOLIO #08-2122-000-0021, 22 52 41 1.597 AC M/L, WEST 200 FEET OF EAST 335 FEET OF SE ¼ OF SE, ¼ OF NW ¼ LYING SOUTH OF BLK 340, PB 50-5 LESS SOUTH 85 FEET AND LESS EAST 75 FEET, OWNED BY KYM PENN LLC; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by R.T. and M.T.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Holmes asked, is there a cost, liens or fines associated with the purchase of this lot?

Manager Patterson stated that there hasn't been a cost asked for on this property; however, there were some fines issued due to illegal dumping.

Because the City Manager wasn't clear on the amount in fines on that property, Commissioner Holmes withdrew his motion on the above resolution.

It was moved by Commissioner Tydus, seconded by Vice Mayor Taylor to pass the above resolution.

Since the amnesty program has passed, Commissioner Johnson said she was looking for those violations, if any, to be under that process.

Attorney Rodriguez explained that the resolution is to authorize the City Manager to begin negotiations. If there are any outstanding liens, as any person going to be buying real estate, the city would be conducting its due diligence to determine whether there are certain ongoing problems on this property. As part of any real estate contract, the City Attorney would be a part of the negotiation process to tell the property owner that they need to bring this up to code in order for the sale to go through or its going to be incorporated in the price of the property.

Commissioner Johnson said she would look for the City Attorney's Office to work with the City Manager to make sure all those processes have taken place.

Attorney Rodriguez assured the Commission that the City Attorney's office would be assisting in any due diligence that needs to be done for the purchase of this property.

Commissioner Johnson stated that in negotiations she would expect the City Manager to bring back the cost to this Commission.

Manager Patterson agreed.

Commissioner Tydus pointed out a typographical error in the resolution which is being sponsored by her and is not a co-sponsorship with Vice Mayor Taylor.

Attorney Rodriquez said he would make the correction.

After hearing the comments made by the City Manager about illegal dumping on the property which caused the fines to be issued, Vice Mayor Taylor asked, is the owner of the property responsible for those fines since the City Manager is aware that the illegal dumping was not the owner?

Attorney Rodriguez stated that as property owner they are ultimately responsible for the condition of their property. Therefore, if there are code enforcement fines, it is levied upon the owner and not the owner saying it was someone else who came on the property and did this. The property owner must take control of the property to avoid having third parties to come in and dump.

Vice Mayor Taylor stated that the property owners contacted the City Manager and in the City Manager's due diligence, he found out that someone else honestly did put this on the property.

Attorney Rodriguez stated that if this were going to Code Enforcement then those would be mitigating circumstances but the bottom line is that the property owner is ultimately responsible for the condition and status of their property.

Mayor Kelley commended Commissioner Tydus for sponsoring this resolution because the city had hoped to get this property a couple years ago but when it went into different ownership they were not able to get it because the owners had other plans in mind. However, to see that the city may possible negotiate to get the property with it being next to Segal Park it gives the opportunity for green space. He said he would look through the City Manager's negotiations as to how he is mitigating because the dumping has been an ongoing issue. Until the city is able to negotiate and/or purchase this property, the property must be maintained until something occurs. Since this will come back to the Commission for approval he would support it.

Commissioner Tydus requested that the City Manager allow Starex Smith to brief the Commission on the perspective grants available for purchases such as this.

Mayor Kelley stated that he wasn't sure if what Mr. Smith stated would have an impact on negotiations.

Attorney Rodriguez stated that the question would be, are there grants available to the city for acquisition for procurement?

Mr. Smith replied, yes.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Mayor Kelley	Yes

14. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO SUPPORT AND ENDORSE THE SOUTH FLORIDA PARKS COALITION AND THE PRINCIPLES FOR WHICH IT STANDS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, (Mayor Kelley pass the gavel to Vice Mayor Taylor) seconded by Mayor Kelley to pass the above resolution.

Following attendance at the Miami-Dade League of Cities meeting, Commissioner Johnson stated that she found out the city had never been a part of the South Florida Parks Coalition and this would be a good opportunity to tap into grants.

Mayor Kelley stated that he was surprised the city was not a part of the South Florida Parks Coalition because in addition to resource opportunities just the potential to find out what is going on in other park coalitions and what is going in other parks not just in a standpoint of baseball, basketball and those kinds but other services relating to parks.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Vice Mayor Taylor returned the gavel to Mayor Kelley.

17. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AWARDING THE CONTRACT FOR FINANCIAL ADVISORY SERVICES TO FIRST SOUTHWEST AS THE MOST RESPONSIVE BIDDER, FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH FIRST SOUTHWEST FOR THE PROVISION OF FINANCIAL ADVISORY SERVICES IN AN AMOUNT BASED ON THE VALUE OF THE BONDS ISSUED, PAYABLE FROM ACCOUNT NO. 17-513312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

In the correspondence provided to the Commission, Commissioner Johnson noted that the financial impact lead her to believe that the amount could be more.

Manager Patterson stated that resolutions 15 and 16 go hand in hand but 16 was deferred because Vice Mayor had an issue with the advertising.

Commissioner Johnson asked, what is the actual amount for the above resolution?
Manager Patterson explained that the amount would be based on how much the city goes out for.

Commissioner Johnson suggested that the resolution be amended to include an amount because the only reference to an amount is in the supporting documentation provided to the Commission for approximately $800,000.00.

Manager Patterson stated that the city would only know that information when the financial advisor is on board.

Commissioner Johnson said that is why she said the two resolutions go together because the bond counsel is going to be the advisor to assist with this matter.

Manager Patterson said the two resolutions go hand in hand because if the city doesn't have a financial advisor then they won't need a bond counsel.

Commissioner Johnson requested to defer the resolution and have it brought back along with resolution #16 which was deferred.

Manager Patterson stated that the city needs a financial advisor on board.

Vice Mayor Taylor clarified that the financial advisor is the person who says how much can be squeezed out of the bond and the bond counsel is to help with the paperwork process; therefore, the resolutions can be done separately. The city is saying that they're looking for approximately $800,000.00 out of the bond but once there's a financial advisor then they could possible get more.

Manager Patterson said that Vice Mayor Taylor was correct and that is why there is no money amount in the resolution.

During the presentation, Commissioner Johnson said that the amount given on record was 1.5. Million Dollars and when the next presentation was done the number was $800,000.00.

Mayor Kelley suggested that the Commission vote on this resolution because the city needs the advisor to help through the process. During the presentation, the city went from 5 to 8 to the 1.5 Million which was based on the fact that the City Manager at that time was using financial assistance from the previous company. He said he didn't have a problem with the $800,000.00 being the low number and hopefully it does rise. The city has talked about this issue so much and they must move forth with it to get it out to the market to see what it bears. From the city's standpoint, it must have the advisor's services on board. He asked, was the City Manager saying that he didn't feel comfortable putting that number in the resolution?

Manager Patterson said that he felt comfortable putting the $800,000.00 in the resolution because that's what the city has used as a part of the budget process and anything above that would come to the Commission for approval.

Commissioner Johnson asked, who is the city's financial advisor?

Based on the resolution, Mayor Kelley said it would be First Southwest which is the recommendation from the City Manager.

He further expressed the importance of having a financial advisor on board.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	Yes

18. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH FLORIDA INTERNATIONAL UNIVERSITY DEPARTMENT OF ENVIRONMENTAL ENGINEERING (FIU) TO CONDUCT A PEAK FLOW STUDY FOR THE CITY OF OPA-LOCKA SANITARY SEWER SYSTEM IN AN AMOUNT NOT TO EXCEED TWENTY THOUSAND DOLLARS ($20,000.00), PAYABLE FROM ACCOUNT 64-533312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EEFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked, has the city taken the opportunity the county has given to use their vendor listing for procurement services?

Manager Patterson replied, yes.

Commissioner Johnson asked, was FIU one of the companies on the vendors list?

Manager Patterson responded no. He said that FIU uses students to conduct the peak flow study which helps the graduating students. Should the city go out into the market place, it would never get a peak flow study for this amount of money.

Commissioner Johnson said she would hope this would not end up like the study completed by FIU on the downtown area which is collecting dust.

Of concern to Commissioner Holmes was that this study was completed a while back and he didn't know why the city would need another one.

Daniel Abia, Director of the City of Opa-locka Public Works Department came forward and stated that this study should have been done prior to completing the previous designs. The city has done several designs for pump stations in the city; but this is a requirement from DERM. In addition to that, the city wants to engage FIU with the pump stations to be able to possibly partner with them in applying for funds.

Commissioner Holmes asked, wasn't this study conducted several years ago?

Mr. Abia replied, no, not to his knowledge. However, the city has had several linings to find out where the leaks in the pipes where but this is not that type of study. This study is to meet the requirement from Miami-Dade County for a rain flow study from May to October to determine the impact of the rain flow on the city's pump stations.

Mayor Kelley said that the bottom line is that this is a DERM requirement. The city has six pump stations in moratorium but are schedule to be upgraded and as a part of that process and DERM requirement, the peak flow study must be done. The city is engaging FIU for the services because they can do it cheaper than going out to the regular market.

He continued by saying that he was in support of the resolution because this is a part of the things that need to occur in order to move forward with the upgrades to the pump stations currently on moratoriums.

He further asked, are the wastewater improvement projects accounted for in the current budget?

Mr. Abia replied, yes.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

1. AN AMENDMENT TO ORDINANCE 07-19 TO CREATE SECTION II FOR A BAN ON WEARING SAGGY PANTS APPAREL IN CITY BUILDINGS AND PARKS WHICH SHALL ALSO EXTEND TO ALL PLACES OF BUSINESS WITHIN THE CITY OF OPA-LOCKA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on July 28, 2010). *Sponsored by T.H.*

The above ordinance was read by title by Attorney Rodriguez.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

C. RESOLUTION/PUBLIC HEARING:

16. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH CGI COMMUNICATIONS FOR A VIDEO TOUR BOOK, WHICH WILL PROVIDE A VIDEO PROGRAM TO BE DISPLAYED ON THE CITY'S WEBSITE AT NO COST OR LIABILITY TO THE CITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO CREATE A CITY YOUTH COUNCIL; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO TAKE THE NECESSARY STEPS TO ALLEVIATE THE FLOODING THAT OCCURS ON NORTHWEST 131ST STREET AND 32ND AVENUE (INGRAM TERRACE APARTMENTS), AND THE AREA OF NORTHWEST 133RD STREET AND 42ND AVENUE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-OCKA, FLORIDA TO SUSPEND DEFERRED COMPENSATION AND CAR ALLOWANCES FOR UNCLASSIFIED EMPLOYEES FOR A PERIOD OF SIX (6) MONTHS, EFFECTIVE OCTOBER 1, 2010; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO URGE CONGRESS TO SUPPORT H.R. 4812, THE LOCAL JOBS FOR AMERICA ACT TO PROVIDE FEDERAL ASSISTANCE TO MUNICIPALITIES AS THEY SEEK TO PROTECT ESSENTIAL SERVICES AND AVOID ADDITIONAL LAYOFFS OF MUNICIPAL WORKERS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO URGE STATE AND LOCAL OFFICIALS THROUGHOUT THE STATE TO REQUEST THAT CONGRESS AND THE ADMINISTRATION REQUIRE THE EMERGENCY RELIEF PROCEDURES AND REIMBURSEMENT FOR NATURAL DISASTERS BY THE FEDERAL EMERGENCY MANAGEMENT ADMINISTRATION (FEMA) OCCUR WITHIN A REASONABLE TIME FRAME AND PROVIDE EXPEDITED FEMA REIMBURSEMENTS AND AUDITS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO URGE CONGRESS TO MAINTAIN FUNDING TO THE ENERGY EFFICIENCY AND CONSERVATION BLOCK GRANT PROGRAM (EECBG) TO ASSIST CITIES IN FUNDING INNOVATIVE ENERGY SAVINGS STRATEGIES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ENDORSE A PROCLAMATION BY THE GOVERNOR AND CABINET DESIGNATING THE WEEK OF OCTOBER 17 THROUGH OCTOBER 23, 2010, AS "CITY GOVERNMENT WEEK", AND ENCOURAGING ALL CITY OFFICIALS AND CITY EMPLOYEES TO SUPPORT THIS CELEBRATION BY PARTICIPATING IN THE "MY CITY: I'M PART OF IT, I'M

PROUD OF IT!" ACTIVITIES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

13. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO URGE CONGRESS TO SUPPORT H.R. 3745, THE COMMUNITY ACCESS PRESERVATION ACT (CAP), WHICH ADDRESSES CRITICAL AND IMMEDIATE OPERATIONAL AND FUNDING THREATS TO LOCAL PUBLIC, EDUCATIONAL AND GOVERNMENT (PEG) ACCESS CHANNELS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

15. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO REPAIR JOHN DEERE BACKHOE LOADER MODEL 410G VIN# T0410GX931260 MFGR AT NORTRAX REPAIR SHOP, LOCATED AT 4343 NW 76TH AVENUE, MIAMI, FLORIDA 33166, AN AUTHORIZED AGENT OF EQUIPMENT MANUFACTURER (JOHN DEERE) FOR THE SUM OF TWELVE THOUSAND FIVE HUNDRED THIRTY SEVEN DOLLARS AND EIGHTEEN CENTS ($12,537.18), PAYABLE FROM ACCOUNT NUMBER 49-541640; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Rodriguez.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson provided the Commission with a report on the incident which occurred at the Parks & Recreation Department and the status of the AFSCME and PBA negotiations.

Commissioner Johnson directed the City Manager to get back with the Commission on the recommendations as a result of the meeting with Commissioner Jordan's office staff because she is concerned about the segregation of responsibility throughout the city's operation.

She continued by saying that she didn't support the financial advisor resolution because in looking at the packet, this item read "draft" and when something is presented in draft format then it is subject to change without the Commission being notified.

She further stated that she was concerned with the young lady at the Town Hall Meeting and she doesn't understand how this got mixed up because in speaking with the secretary for the Commission, she had no idea of a conversation ever being held. Should a telephone call come in for the Commission then it should be automatically routed to the secretary through the City Clerk's Office to avoid from being put on the spot in public and to have people think the Commission is not responding.

Commissioner Johnson directed the City Manager to follow up on the tour check list and the Welcome Kit meeting.

She continued by saying that she didn't know whether it is true but after speaking to a representative for Verizon Wireless during a state meeting in Hollywood she is concerned with the comments made as to how the city switched services. She directed the City Manager to have staff prepare a comparison of services because she is experiencing many dropped calls with the current provider. If it is true as to how the city switched then it is not a good business practice and she would share that information with the City Manager offline.

Vice Mayor Taylor congratulated the City Manager and staff for eliminating the need for lay offs during this hard economic times. She commended the Parks & Recreation Department for the Labor Day event.

She continued by expressing her concerns relating to a comment from a park volunteer worker who indicated that the children had little or no food after events and the lack of vendors on the park to purchase snacks. She directed the City Manager to look into this matter.

She further made reference to the minutes of the last meeting where she asked the City Manager about the resolution to fill the position of Community Development Director at which time Mr. Patterson responded by saying there was no action on the resolution but she doesn't recall any resolution coming before the Commission. During that same conversation she continued to question Mr. Patterson and Mr. Patterson informed the Commission that the person was in the pipeline prior to the adoption of the resolution for the hiring freeze. She requested clarification because she could not remember anyone being in the pipeline and the employee came in after the freeze was in place.

She had requested the City Manager bring back a resolution to the Commission because she didn't remember it being before the hiring freeze. She said she didn't have a problem with this because the city does need a Community Development person. She directed the City Manager to bring back a resolution to release the freeze so that he could hire the individual for Community Development because she just doesn't like the person here and

they're just here. If that person was already here before the freeze then she stands corrected if not then she would like to have it corrected.

She further expressed her dissatisfaction with the lack of cleaning throughout the city more specifically the alleyways. She even received information that the landscaping has increased to $300,000.00 and the way she figures it is that the city could bring this service in-house using that money to hire additional people. She requested that the City Manager look into this matter and she would support any resolution to bring this service in-house thereby hiring more people.

Vice Mayor Taylor previously asked the City Manager to provide samples of facades for the 22nd Avenue corridor (from NW 135th Street to SR9 and from SR9 to NW 151st Street) which is an addition to the attack that's going to be with the Opa-locka Police Department and Code Enforcement.

Commissioner Holmes stated that one of the police officers mentioned to him that he was hired during the time when the city was offering the $5,000.00 bonus but this police officer didn't receive the bonus because the city couldn't find the paperwork.

He requested a resolution to be placed on the next commission meeting agenda directing the City Manager to look into this matter and give Officer Kelly the $5,000.00 if he is entitled to it.

He further stated that one of Opa-locka's long time resident is complaining about the parking along Fisherman Street because people are parking in the parking spaces who shouldn't be parked there; she even mentioned some of the commissioners.

Commissioner Holmes voiced his concerns relating to a party held down Wilmington Street by the canal and because of the manatees in the water; water skis are prohibited pursuant to Miami-Dade County code. After driving by that area, he seen the pole but the "no trespassing" sign is missing. He suggested that the city do the right thing by either allowing or banning the jet skis. Should the city ban the jet skis then there needs to be enforcement.

With regards to the 22nd Avenue Apartments, he said that he noticed there are a lot of mattresses on the sidewalk in front of the building and that many of the units are unoccupied. He directed the City Manager to send staff over to that area to address these concerns.

He further commended the City Manager's Office and Parks and Recreation for a great job on the Labor Day event.

Commissioner Holmes said he received complaints pertaining to sidewalks. He referenced the NW 139 Street area where new sidewalks were being poured and a individual wanted the sidewalk poured a certain way but they were told they couldn't get

it done that way; however, when that individual mentioned several names they were able to get the sidewalks done the way that person initially wanted.

He continued by saying that if the AFSCME wants the Commission to vote the resolution up or down then the City Manager should see about bringing this item before the Commission.

With regards to a couple of issues mentioned to the City Manager reference the guide Commissioner Johnson spearheaded, Mayor Kelley said that the city had the Women's Semi Pro Basketball Tournament a few weeks ago and it would have been wonderful if the city had that to give out.

He thanked the City Manager and staff for the business guide for those businesses in the city who don't know how to do business in the city and learn the proper process in terms of licensing, etc.

As previously mentioned under the City Manager's Report about the things being worked on, he said that some of those have timelines and the City Manager needs to be more concise in his reporting of timelines as to when he will get things completed.

As a follow up to the meeting of the Educational Tour, he requested that the City Manager provide a follow up to those items mentioned particularly the maintenance issues regarding schools.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that all the financial reports are included in the packet provided to the Commission. He said Commissioner Johnson had particularly asked about the bank accounts and balances and that too has been included in the packet for review. With that, all the payables are being made on time and according to the procedures.

In view of the resolution that came forth reference the $12,000.00 owed to the company for the emergency repairs to the lighting at Ingram Park, Vice Mayor Taylor requested that Dr. Orji find out if there any other outstanding invoices for 2010 that won't come up in a resolution.

Dr. Orji said he would look into any outstanding invoices; however, the point is that that particular invoice never came to Finance. As a matter of fact during the staff meeting all the directors were instructed to make sure all invoices and/or open items are brought to Finance's attention. In the case of that particular item, that invoice was never submitted to Finance.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Commissioner Johnson directed the City Attorney to work with the City Manager in researching the issue with the employees losing their time.

In addition to that, she directed the City Attorney along with the City Manager work on bringing back all contracts, agreements and MOU's scheduled for renewal to make sure the city is on target with timelines.

Commissioner Holmes directed the City Attorney to bring back the resolution at the next meeting relating to the Personnel Board which didn't get amended to the agenda. As soon as the Chief of Police contacts him with a curfew time he would call Mr. Geller's office for preparation of an ordinance to establish a curfew in Opa-locka.

The City Commission thanked Attorney Rodriguez for his thoroughness in legal advice.

Mayor Kelley asked Commissioner Johnson if she was making reference to only upcoming MOU's or all MOU's.

Commissioner Johnson said she was making reference to all MOU's.

19. CITY CLERK'S REPORT:

Commissioner Johnson asked whether the City Clerk received any report from the Miami-Dade County Elections Department relating to the punch numbers.

Clerk Irby advised that the punch numbers are suppose to be sent to her the following day (Thursday, September 9, 2010 by 12:00 p.m.).

Mayor Kelley and Commissioner Holmes commended Sha'mecca Lawson for her hard work during the absence of the Assistant City Clerk.

20. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor reported that the seniors roofing program is under way and still going strong.

Commissioner Johnson said she knew of several seniors in need of roof repairs and asked if there was anyway they could be added to the listing.

Vice Mayor Taylor suggested that Commissioner Johnson provide her with the names of the seniors.

Commissioner Johnson reported her attendance to the Florida League of Cities and said that the Intergovernmental Committee is creating a subcommittee for emergency management. At that time she stated that there isn't an emergency shelter in the North

corridor of Miami-Dade County in the event of emergency so the Florida League of Cities will be addressing that issue.

She continued expressing her appreciation for being able to participate in the educational tour which was an excellent opportunity and they were able to address the maintenance. One of the items she brought up was putting elevators in both of the schools in Opa-locka and the Commission was able to voice their opinion to consider a middle school in the area.

She further stated that her organization doesn't have a supplemental education service but she is very appreciative of being asked to be a champion in this area of which she thanked Terence Pinder and Gary for receiving those applications that is being hosted by another agency.

Commissioner Johnson spoke about the educational compact and working with the Parks Director to present it to the school board.

She further requested that the Commission consider making contributions towards the funeral of the child killed in an accident on NW 27th Avenue a couple of weeks ago.

Commissioner Tydus reported that along with the Mayor and Commissioner Johnson she attended the tour of the city's two elementary schools, with the Miami-Dade County Superintendent, some of his staff and city staff as well and they were so very impressed with the accomplishments, improvements and achievements of the city's two elementary schools and with the city as well. Also, she hosted the 2nd Lunch and Learn on August 28, 2010 and the movie was More than a Game which is a documentary on Lebron James.

She continued by saying she'd been meeting regularly with the 70's costume ball committee and she is looking forward to another successful event.

Commissioner Holmes suggested that the IT Department look into the lighting with the show played on OPA-TV relating to the water.

Mayor Kelley reported his attendance at the Crime Watch Summit hosted by the Opa-locka Police Department; Florida League of Cities Conference; the Summer Job Luncheon for the business community in support of the youth summer employment initiative; represented the city for the Miami Rain Meet & Greet; and met with representatives of the Opa-locka Executive Airport relating to the development to ensure job creation for city residents.

He reminded the City Manager to have staff at the Crime Watch Meetings.

He further reported on the tour with Miami-Dade County superintendent of schools and as Commissioner Johnson mentioned that one of the concerns was the maintenance and elevators.

Mayor Kelley commended Commissioner Holmes on the Labor Day Bash.

He stated that he attended the Florida League of Cities Policy Committee on financial taxation in Orlando, Florida and he was very fortunate to be appointed the Vice Chair of the committee for the state. This allowed him to get a snapshot of what's potentially coming down the pipes (i.e. the financial challenges or mandates to cities).

He encouraged everyone to invite the businesses in the city to the business assistance workshop on September 23, 2010 at 11:00 on the 2nd Floor of Town Center.

Commissioner Johnson asked that staff consider getting more involved with the Florida League of Cities.

Clerk Irby read a letter into the record addressed to The Honorable Mayor Joseph Kelley from the Florida League of Cities offering members a 25% rebate of dues paid for this fiscal year in light of the financial challenges being faced by all.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 11:33 p.m.

MAYOR

ATTEST:

CITY CLERK